

		Defendants, and (6) conspiracy against all moving Defendants. (ROA 2.) Plaintiff Kristina Danze did not oppose any of the three demurrers. Based on Plaintiff's non-opposition, the Court may "deem plaintiff[] to have abandoned the issues" or "claims" addressed in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20.) The non-opposition is considered an implied concession to the merit of Defendants' arguments presented in the Demurrers. (Herzberg v. County of Plumas (2005) 133 Cal.App.4th 1, 20; DuPont Merck Pharmaceutical Co. v. Superior Court (2000) 78 Cal.App.4th 562, 566 ["By failing to argue the contrary, plaintiffs concede this issue."]; Glendale Redevelopment Agency v. Parks (1993) 18 Cal.App.4th 1409, 1424 [holding that "by failed to address" an issue, the issue is "impliedly concede[d]."]; and Westside Center Associates v. Safeway Stores 23, Inc. (1996) 42 Cal.App.4th 507, 529 ["Its failure to address the threshold question of intent effectively concedes that issue and renders its remaining arguments moot."].) The Demurrers will be SUSTAINED. As of this date, Plaintiff has not made any attempt to explain whether and how the complaint can be amended. The Court will determine whether to sustain the demurrers with or without leave to amend based on Plaintiff's response. Defendants to give notice.
104	Douraghi vs. Douraghi, 2020-01137161	MOTION TO BE RELIEVED AS COUNSEL – GRANTED Underwood Law Firm, P.C. moves to be relieved as counsel of record for Plaintiffs Iraj Douraghi and Abdol Amir Douraghi. The attorneys identified in the caption for Underwood Law Firm, P.C. are Elijah Underwood and Abel Edens (collectively, "Moving Counsel"). The unopposed Motion is GRANTED, as follows. Moving Counsel has utilized the Judicial Council Forms (MC-051, MC-052, and MC-053), and has satisfied the

		notice, declaration, proposed order, and service requirements of California Rules of Court, rule 3.1362. Moving Counsel also provides grounds for granting the motion under California Rules of Professional Conduct 1.16(a)(2), (b)(4), (b)(5), (b)(7), (b)(9), and (b)(10). (ROA 375, Judicial Council Form MC-052, Declaration in Support of Attorney's Motion to be Relieved as Counsel, ¶ 7.) Moving Counsel has presented a basis for permissive withdrawal under the California Rules of Professional Conduct. The motion to be relieved as counsel of record is GRANTED. The Court will sign the proposed order and delete the next scheduled hearing date set forth in paragraph 7(a)-(b) which is listed as "08/03/2026 at 8:30 a.m. in Dept N14" for "Jury Trial." The Court will also delete the trial date set forth in paragraph 9(b) which is listed as "08/03/2026 at 8:30 a.m. in Dept. N14." The Court will interlineate the trial date set forth in paragraph 9(b) as "11/30/26 at 8:30 a.m. in Department N14." The order relieving Moving Counsel as counsel of record for Plaintiff is effective upon counsel filing proof of service of a copy of the signed order, on the client and on all parties that have appeared in the case. (California Rules of Court, rule 3.1362(e).) Moving Counsel to give notice.
105	Gallagher Law Group v. Leadpin	OFF CALENDAR - WITHDRAWN

106	Lopez vs. Volkswagen Group of America, Inc., 2026-01556626	DEMURRER TO COMPLAINT – MOOTED BY FILING OF FIRST AMENDED COMPLAINT
107	Luther v. Zahedi	OFF CALENDAR
108	Mom CA Investco, LLC vs. 247 Hotels Beverage, LLC, 2023-01325570	OFF CALENDAR - WITHDRAWN
109	Munguia vs. BMW of North America, LLC, 2025-01453458	MOTION FOR TERMINATING SANCTIONS BMW of North America, LLC (“BMW”), request an order imposing terminating sanctions against Plaintiff Maribel Munguia Plaintiff and her counsel of record, Quill & Arrow LLP, pursuant to CCP§§ 2023.010(d), 2023.030(d), and 2025.450(d) for their willful failure to (1) appear for deposition and (2) make the Subject Vehicle available for inspection, in violation of this Court’s March 3, 2026 Order (ROA 75). In the alternative, BMW requests the Court impose issue sanctions, evidentiary sanctions, and monetary sanctions in the form of attorneys’ fees and costs incurred as a result of Plaintiff and her Counsel’s failure to comply with the Court’s order and their misuse of the discovery process. A court has broad discretion in selecting the appropriate penalty for a party’s refusal to obey a discovery order, and the trial court’s determination must be upheld absent an abuse of discretion. (Lopez v. Watchtower Bible & Tract Society of New York, Inc. (2016) 246 Cal.App.4th 566, 604 (“Lopez”).) “Despite this broad discretion, . . . the terminating sanction is a drastic penalty and should be used sparingly. [Citation.]” (Ibid.) “A trial court must be cautious when imposing a terminating sanction because the sanction eliminates a party’s fundamental right to a trial, thus implicating due process rights. [Citations.]” (Ibid.) The discovery statutes “evinced an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination.” (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th